

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUOE064326: ROCIO LOPEZ vs AKD 3006 ROYAL, INC.
07/13/2026 in Department 44
Motion to Compel Arbitration Dismiss class Claims and Stay Proceedings

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Motion to Compel Arbitration, Dismiss Class Claims, and Stay Proceedings (“Motion”)

Tentative Ruling: Defendant, AKD 3006 Royal, Inc.’s (“Defendant”) Motion is GRANTED.

The Court has reviewed the moving papers filed in support of Defendant’s Motion to include the arbitration agreement attached as Exhibit A to the Declaration of Navreet Bopari, Plaintiff Rocio Lopez’s (“Plaintiff”) notice of non-opposition to the Motion, and Defendant’s response to Plaintiff’s non-opposition.

At the time Defendant filed the Motion, the operative pleading was the complaint filed April 3, 2026, in which Plaintiff asserted 7 putative wage and hour causes of action and a claim under the Unfair Business Practices Act. On May 20, 2026, Defendant filed the Motion, which is set for hearing on July 13, 2026. Thereafter, on June 24, 2026, Plaintiff filed a First Amended Complaint, which reasserts the class claims and adds a claim under the Private Attorneys General Act of 2004 (Lab. Code § 2698 et seq.) (“PAGA”). On June 29, Plaintiff filed a “non-opposition” to the Motion. In her statement of non-opposition, Plaintiff agrees to submit her individual claims to arbitration and dismisses the class claims. Plaintiff contends, however, that the arbitration agreement is not “applicable” to the PAGA claim asserted in the First Amended Complaint both as to Plaintiff’s individual PAGA claim as well as the representative

PAGA claim under section 7 of the arbitration agreement. Defendant contends that the arbitration agreement does not provide the carve-out that Plaintiff proposes.

The Court declines Plaintiff's invitation for more briefing on the issue of the arbitrability of Plaintiff's individual and non-individual representative PAGA claim. The issue was briefed with the argument raised in the Plaintiff's "non-opposition" and Defendant's response to Plaintiff's argument. Given that both parties have briefed the issue, the Court will decide the issue.

In deciding a petition to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties and then determine the second gateway issue of whether the claims are covered within the scope of the agreement. (*Omar v. Ralphs Grocery Company* (2004) 118 Cal.App.4th 955, 961.) Here, Plaintiff concedes the first issue by submitting her individual claims to arbitration and dismissing her class claims; an enforceable arbitration agreement exists. Plaintiff disputes, however, that the arbitration agreement extends to Plaintiff's individual PAGA claim, contending that Plaintiff's individual claims are included within the term "representative" PAGA claim, and are thus not subject to arbitration. Plaintiff's position is inconsistent with the plain language of the Agreement and the cases that approve splitting PAGA claims into individual and non-individual claims. (See *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 662, and *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1123-1124.)

Section 2 of the arbitration agreement broadly covers "all grievances, disputes, claims, or causes of action ("disputes") arising out of or related to your application for employment with, employment by, or other association with the Company (pre-hire through post-termination), and any other disputes you may have against the Company or against its officers, directors, supervisors, managers, employees, or agents in their capacity as such or otherwise, or that the Company may have against you, regardless of the date on which the dispute arises, whether based on tort, contract, statute (including under any state or federal law, ordinance, constitution, or regulation), equitable law, public policy, or otherwise." Section 3 of the agreement limits the scope of the clause to a variety of disputes but does not exclude claims under PAGA. Section 7 of the agreement provides that "any representative action brought under the California Private Attorney General Act will be stayed pending the outcome of any claims brought under and subject to this binding arbitration agreement." (Bopari Decl., ¶ 33, pp. 2 & 4.)

The Court finds that the scope of the arbitration agreement broadly includes Plaintiff's individual claims – to include those asserted under PAGA -- under section 2. Section 7 of the agreement provides that the representative PAGA claim should be stayed. In addition, Plaintiff's proposed interpretation of the Agreement would inconsistently allow Plaintiff to simultaneously submit her claims to arbitration and at the same time preserve the right to relitigate them in state court. As Defendant points out, the Supreme Court in *Adolph v. Uber Technologies, Inc.* made clear that a court may stay the non-individual PAGA claim while submitting Plaintiff's individual claims to arbitration. (Response, p. 2 citing *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104, 1123-1124.) The framework applied in *Adolph* is one that was approved of by the United States Supreme Court. (See *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 662 [FAA permits splitting a PAGA action into an arbitrable individual claim and a non-individual representative claim].) Finally, in addition to the language of the arbitration agreement that provides for the representative PAGA claim to be stayed pending arbitration, the Court stays the representative PAGA claim under Code of Civil Procedure section 1281.4.

Accordingly, the Court GRANTS Defendant's motion to compel Plaintiff's individual claims, including her individual PAGA claim, to arbitration, dismiss the class claims, and stay the non-individual representative PAGA claim pending arbitration.

The Court sets a status conference re: arbitration proceedings on **July 9, 2027, at 8:30 a.m.** The parties shall file a joint statement 10 days in advance of the status conference regarding the arbitration proceedings.

Defendant shall give notice.